

Before the
FEDERAL MARITIME COMMISSION

Docket No. 22-21

MSRF, Inc.

v.

YANG MING TRANSPORT CORPORATION

JOINT REQUEST FOR CONFERENCE

Complainant MSRF, Inc. (“Complainant” or “MSRF”) and Respondent Yang Ming Marine Transport Corporation (“Respondent” or “Yang Ming”) jointly request the Presiding Officer to convene a conference (by telephone or video conference) to discuss matters relating to discovery, including clarification of the Presiding Officer’s Decision dated February 24, 2023. The Parties believe that such a conference will assist in closing the disputes over discovery and related issues without the need for further motions (such as a motion to dismiss the Complaint for failure to prosecute and/or a motion to reconsider the February 24 decision. In particular, the Parties would like to discuss:

1. That Complainant has failed to respond at all to Respondent’s supplemental discovery requests, propounded January 10, 2023, in accordance with the Scheduling Order.
2. Clarification with respect to Respondent’s requests for information regarding other service contracts and shipment options, which are relevant to the issue whether Yang Ming, as opposed to HMM or some other ocean carrier, is responsible for MSRF’s need to make alternative arrangements and also whether MSRF mitigated its damages by making the most cost-effective alternative arrangements, as well as whether MSRF is seeking damages for the same shipments from more than one carrier.
3. Update regarding the status of discovery requests that Respondent agreed to withdraw, subject to Complainant providing specific additional information.

In light of the time constraints, the Parties would like the conference to be held as soon as convenient. The Parties could be available any of the following dates/times:

Wednesday, March 1 – starting between 9:30 a.m. and 10:30 a.m. EST (8:30-9:30 CST); starting between 3 p.m. and 6 p.m. EST (2:00 to 5:00 CST).

Thursday March 2 or Friday March 3 – ending before 9:30 a.m. EST (8:30 a.m. CST).

Dated: February 28, 2023

Respectfully submitted,

By: /s/ 

Counsel for Complainant, MSRF, Inc.

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CERTIFICATE OF SERVICE

I certify that on the 28th day of February, 2023, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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